



Dual Dynamics of Chinese Constitutional Review: Coexistence and Tension Between Rule of Law and Party's Leadership

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Abstract

The advancement of constitutional review in 2018 marks a significant constitutional development in China under Xi Jinping. This article examines cases since then and reveals the dual dynamics of Chinese constitutional review: promoting the rule of law and upholding the leadership of the Chinese Communist Party (CCP). On one hand, constitutional review has emerged as an additional channel for protecting human rights, enhancing legislative consistency and improving government accountability. On the other hand, it is deeply politically embedded, as reflected in the determination of priority according to the CCP's policies, the examination of legislation according to the CCP's directives, and the enshrinement of Xi's thoughts and Party's leadership as fundamental principles of constitutional review. When tensions arise between the CCP's policies and the constitution or laws, the former often prevails. This article suggests that these dual dynamics of Chinese constitutional review are best understood through the lens of Chinese rule of law, which features a duality: upholding the rule by the Party while safeguarding the authority and autonomy of law. It argues that neither dynamic should be overlooked or overstated. Views that reduce constitutional review to be a mere tool of the CCP's rule neglect the autonomy of various actors in this process and undermine the rationality and value of constitutional review in regulating modern China. Yet, an independent constitutional review, as entrenched in the Western conception of the rule of law, is unlikely to take root in China owing to the imperative to uphold the CCP's leadership.

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1 Introduction

Constitutional review generally refers to the mechanism by which a court examines the compatibility of legislation with a constitution, often involving the elaboration of constitutional principles by a politically independent elite court.¹ It is the key feature of legal constitutionalism and is closely associated with the separation of power, the rule of law, individual rights and dignity, and limited government.² A constitution is a fundamental law of a state, sitting above all political parties and state apparatus. By allowing courts to invalidate legislation that oversteps constitutional bounds, constitutional review functions as a check on legislative and executive powers and operationalizes the supremacy of the constitution.³ Perhaps the most visible role of constitutional review is protecting individual rights against encroachment by majoritarian policies, which drove its proliferation after the Second World War.⁴ In contrast to this widely accepted judicial model, constitutional review in China is notably distinctive. While China has a constitution, legal constitutionalism is viewed with scepticism. Constitutional review in China is not judicial review but is carried out by the National People's Congress (NPC) and the Standing Committee (NPCSC), the country's highest legislature. It lays equal stress on *ex ante* and *ex post* scrutiny and takes an overarching approach by examining statutes, regulations, rules and judicial interpretations.⁵ For concision, this article will refer to laws other than statutes collectively as sub-statutory legislation.

The advancement of constitutional review after 2018 has been a remarkable constitutional development under Xi Jinping's leadership of the Chinese Communist Party (Party or CCP). Since its establishment in 1949, the People's Republic of China (PRC) has enacted four constitutions (PRC Constitution or Constitution). Except for the Constitution adopted in 1975 amidst the Cultural Revolution and which laid down the continued revolution under the proletarian dictatorship,⁶ the other three Constitutions expressly conferred power on the NPC and NPCSC to interpret the Constitution, supervise the implementation of the Constitution, and strike down regulations issued by the State Council and provincial people's congresses which contradict the Constitution.⁷ These provisions lay down the groundwork for constitutional review.⁸ But the NPC and the NPCSC *de facto* relinquished

¹ Möllers (2025).

² Barber (2018, pp. 2-6); Loughlin (2010, pp. 55-58); Allan, (2013, p. 17).

³ Stone Sweet (2012, p. 816).

⁴ Ginsburg (2008, p. 88); Tate (1995, pp. 29-30); Weinrib (2016, p. 3).

⁵ Regulations (法规) are primarily enacted by the State Council and the provincial people's congresses. Rules (规章) are issued by the departments of State Council and local governments. Both the Supreme People's Court and the Supreme People's Procuratorate enjoy the power to issue judicial interpretations (司法解释), which are general, binding and prospective in effect, functioning much like laws in application. The hierarchical ranking of Chinese legal sources, see Xiao and Lin (2022, p. 374).

⁶ Chin (1977, p. 5).

⁷ PRC Constitution, arts. 27(3) and 31(6) (1954); PRC Constitution, arts. 22(3) and 25(3) (1978); PRC Constitution, arts. 62(2) and 67(1), (7) and (8) (1982). Otherwise specified, the following references to the PRC Constitution refer to the 1982 Constitution.

⁸ Tong (2010, pp. 672-673).

their constitutional review power,⁹ which gave rise to the attempt by the Supreme People's Court (SPC) to introduce judicial constitutional review in 2001.¹⁰ This bold endeavour eventually failed owing to an angry backlash from the CCP members and NPCSC officials, who considered judicial constitutional review to be a threat to the NPC and the CCP's leadership.¹¹

In October 2017, the term “constitutional review (*hexianxing shencha*)” appeared in the CCP Congress report for the first time, marking a watershed in the development of Chinese constitutional review.¹² Five months later, the NPC enacted the Fifth Constitutional Amendment and created the Constitution and Law Committee (CLC) under the NPC, which is given wide constitutional powers, including advancing constitutional review.¹³ Since 2018, China has seen a surge in constitutional review cases, an increased number of declarations of unconstitutionality and unlawfulness, and the improved transparency of constitutional review work.¹⁴

These changes have drawn growing academic attention. Embedded in China's party-state regime, law and legal institutions are often portrayed as instruments of CCP's authoritarian governance.¹⁵ Within this framework, some existing English literature has tended to approach China's constitutional review with a degree of scepticism. It is regarded as one of the components of Xi's political reconstruction designed to further centralize authority and discipline bureaucracies and contain people's rights claims.¹⁶ From this perspective, the promotion of constitutional review is dismissed as little more than a political slogan, insufficient to advance the rule of law.¹⁷ However, a substantive body of Chinese literature presents a different perspective. Chinese scholars have been optimistic and anticipate that constitutional

⁹ Zhang (2018, p. 318).

¹⁰ Morris (2019).

¹¹ Zhang (2010, p. 962); Jinhui Su (苏金惠), a senior officer of the LAC, made a proposal to repeal the SPC judicial interpretation on the judicialization of the PRC Constitution. *Brief introduction to the lecturers of the course “Recording and Review Theory and Practice”*. <https://mp.weixin.qq.com/s/U2j90yJd06aJJz8Cz-25cQ> (last visited May 19, 2025).

¹² Xi Jinping delivered a speech in the Nineteenth National Congress of the CCP and stressed the “law-based governance” and promised to “strengthen oversight to ensure compliance with the Constitution, advance constitutionality review, and safeguard the authority of the Constitution”. See http://www.xinhuanet.com/english/special/2017-11/03/c_136725942.htm, last visited on February 17, 2023.

¹³ Apart from that, the NPCSC confers several other powers on the CLC, including strengthening the implementation of the Constitution, conducting constitutional interpretation, enhancing constitutional supervision and coordinating constitutional propaganda. See Decision of the Standing Committee of the National People's Congress on Matters concerning the Duties of the Committee of Constitution and Law of the National People's Congress (Quanguo Renming Daibiao Dahui Changwei Weiyuanhui Guanyu Quanguo Renming Daibiao Dahui Xianfa Yu Falv Weiyuanhui Zhizhe Wenti De Jueding) 22 June 2018. See https://www.gov.cn/xinwen/2018-06/23/content_5300653.htm, last visited on May 14, 2025.

¹⁴ Since 2018, the LAC has been submitting year-end reports on Review and Recording Work Report (备案审查工作情况报告) to the NPCSC. The reports can be found at <https://npcobserver.com/recording-review/>.

¹⁵ Peerenboom (2002); Wang (2022); Zhang (2021).

¹⁶ E.g. Zhang and Ginsburg (2019); Hand (2022).

¹⁷ Peerenboom (2015, p. 66).

review will generate positive changes to the rule of law in China.¹⁸ After seven years of practice, it is a good time to review the operation of Chinese constitutional review and reflect on its actual impact. It is only by examining the actual operation that we can answer whether constitutional review had made substantive contributions to the rule of law in China. Or whether it is merely another tool of authoritarian governance. If so, what are the ways in which it is deployed for regulatory purposes? Exploring these questions not only offers insight into Chinese constitutional review but also contributes to the broader discourse on the operation and role of constitutional review in authoritarian regimes.

This article represents the first piece of research in the English literature examining the operation of China's constitutional review and its impact on the Chinese rule of law. By untangling China's distinctive constitutional review model and examining all publicized cases from 2018 and 2024,¹⁹ this article argues that Chinese constitutional review has shown dual dynamics between promoting the rule of law and upholding the leadership of the CCP. On the one hand, constitutional review has been making a positive difference in improving the consistency of China's legal system, strengthening human rights protection, and enhancing both central and local government accountability. On the other hand, Chinese constitutional review is situated in the authoritarian political system, firmly upholding the Party's leadership. This is evidenced by the determination of priority according to the CCP's policies, the examination of legislation based on the CCP's commands, and the enshrinement of upholding Xi's thoughts and the Party's leadership as fundamental principles of constitutional review. When conflicts arise between the CCP's policies and the Constitution or the law, the former tends to prevail at the cost of the latter.

This article suggests that the dual dynamics of constitutional review can be explained through the lens of the duality in the Chinese rule of law. As an essential part of China's socialist rule of law construction, constitutional review has been adapted in keeping with the duality of China's rule of law—which is upholding the rule by the Party while safeguarding the authority and autonomy of law. This article argues that neither of these dynamics of Chinese constitutional review should be neglected or overstated. Views that reduce constitutional review to be a pure tool of the CCP's rule overlook the autonomy and participation of various actors, such as the NPCSC and individuals, and undermine the rationality and value of constitutional review in regulating modern China. Simultaneously, independent constitutional review and the substantial rule of law, as entrenched in liberal democracies, remain a long shot in China due to the need to uphold the rule by the CCP.

The remainder of this article is structured as follows. Part 2 examines China's model of constitutional review which is comprised of two parts: *ex ante* scrutiny of statutory bills and *ex post* review of sub-statutory legislation. Part 2 also depicts overall constitutional review activities by presenting some essential statistics. Part 3 and Part 4 will present the dual dynamics of Chinese constitutional review

¹⁸ Zhang (2019, p. 5).

¹⁹ These cases are drawn from the annual Recording and Review Work Reports and recording, a case book compiled by the NPCSC, media reports. As illustrated by Part II, the NPCSC reviewed thousands of pieces of legislation per year. But only a small number of decisions are made public.

through in-depth and detailed case studies. Part 5 explains how to understand the dual dynamics, their tension, and prioritization by revealing the internal connection between constitutional review and China's conception of the rule of law. Part 6 concludes this article.

2 Constitutional Review with Chinese Characteristics

In contrast to the orthodox concept of constitutional review in which the courts examine the constitutionality of legislation in adversarial adjudication,²⁰ China has developed a unique constitutional review model to ensure the laws do not contradict the PRC Constitution. This section unpacks this model by highlighting two characteristics and presenting an overview of its activities. First, Chinese constitutional review is divided into two parts: *ex ante* scrutiny of statutory bills and *ex post* review of sub-statutory legislation. Both are carried out by the NPC and NPCSC. The latter is carried out through a unique procedure called “Recording and Review (R&R)” and represents the more potent component of Chinese constitutional review. Second, although a normative and academic distinction exists between unconstitutionality (contradicting the constitution) and illegality (violating higher laws), in practice, R&R checks both the constitutionality and legality of sub-statutory legislation.

2.1 R&R: China's Unique Constitutional Review Mechanism

Ex ante scrutiny of legislative bills is familiar to many because it is a common feature of modern legislative processes. Ensuring the compatibility of statutes with the constitution is important as statutes rank just below the constitution and carry higher legal authority than all other legislation.²¹ Between 2018 and 2024, the NPC and NPCSC enacted an average of nine statutes and approved approximately twenty-two law amendments annually.²² Given that the NPC and NPCSC review the statutes they themselves enact, and due to the limited number of statutes passed every year, the impact of *ex ante* review is relatively modest.

In contrast, *ex post* scrutiny is a particularly important and potent component of Chinese constitutional review due to its wide scrutiny scope and a large number of declarations of unconstitutionality and unlawfulness (exhibited in Sect. 2.3 below). Through *ex post* review, the NPCSC can examine sub-statutory legislation, including regulations issued by the State Council and local people's congresses, rules issued by local governments and State Council Departments, and judicial interpretations made by courts and procuratorates. Furthermore, China has developed a unique *ex post* scrutiny procedure—R&R. The remaining parts of this subsection unveil R&R.

²⁰ Ginsburg (2008); Stone Sweet (2012).

²¹ Lin and Ginsburg (2015).

²² The NPCSC Work Report (Quanguo Renmin Daibiao Dahui Changwu Weiyuanhui Gongzuo Baogao), March 7, 2023, see http://www.npc.gov.cn/npc/c2/c30834/202303/t20230317_428429.html, last visited on April 23, 2025.

“Recording” means submitting sub-statutory legislation to the NPCSC for recording, and “review” means examining sub-statutory legislation’s compliance with the Constitution and statutes. R&R was first created to maintain the consistency of China’s legal system in 1979, following the empowerment of provincial people’s congresses to enact regulations, with the aim of maintaining the coherence of China’s legal system.²³ Although the terms “recording” and “review” always appear together, they are two separate steps. “Recording” triggers “review”, but “review” can also be initiated by other means. Over the years, the NPCSC has developed two other methods for launching review proceedings: review upon a request and targeted review. These three methods are collectively referred to as R&R. R&R is now primarily conducted by the Legislative Affairs Committee (LAC), a working body under the NPCSC.²⁴

Reviewing sub-statutory legislation after recording is the first method. According to the Law on Legislation, the State Council, the provincial people’s congresses, the SPC and other state organs ought to submit regulations and judicial interpretations for recording within 30 days after the publication of regulations.²⁵ The LAC then scrutinizes and decides whether regulations and judicial interpretations contravene the Constitution and statutes.²⁶

The second R&R method is review upon requests from state institutions and individuals. The LAC is obliged to launch a review against regulations and judicial interpretations upon the request of certain important state institutions. However, individuals’ review requests do not necessarily trigger a review because the LAC retains the discretion over whether to initiate a review proceeding.²⁷

The last R&R method is for the LAC to undertake a review on its own initiative, which is known as targeted review in China. This is the latest review method recognized by the R&R Work Measures 2019 and later enshrined in the Law on Legislation in 2023.²⁸ Targeted review differs from review after recording and review upon a request in two significant ways. First, the scope of targeted review is much broader than the other two models. Whereas the purpose of targeted review is to examine all sub-statutory legislation and even informal policy documents, the latter two only

²³ In 1978, the Third Plenary Session of the Eleventh Central Committee of the CCP brought about significant changes in China. While this conference attracted widespread attention, most commentators focused on the Reform and Opening, China’s modernization, and the beginning of Deng Xiaoping’s era. Another overlooked policy put forward the task of strengthening the socialist rule of law and stepping up legislative work. In 1979, the NPC authorized the people’s congresses at the provincial level to enact local regulations and meanwhile created the R&R, by which local regulations are submitted for recording and reviewed by the NPCSC for their compatibility with the PRC Constitution and statutes. Wei (2021).

²⁴ The LAC was established in 1983, and its predecessor was the Legislative Commission (LC), which was created in 1979 to assist the Chinese legislature’s work, including reviewing regulations. Brief Introduction to the LAC, see <http://www.npc.gov.cn/npc/fgw001/202009/37a38fef089e499bb63b9d58ceda9ba4.shtml>, last visited on May 15, 2023.

²⁵ Law on Legislation, arts 109 and 119.

²⁶ Work Measures for Recording and Review of Regulations and Judicial Interpretations (Fagui Sifa Jieshi Beian Shenchu Gongzuo Banfa), arts 18, 20 and 33. [hereinafter Work Measures 2019].

²⁷ Law on Legislation, art 110(2).

²⁸ Work Measures 2019, art 25; Law on Legislation, art 116.

cover regulations and judicial interpretations.²⁹ Second and most importantly, the LAC launches targeted reviews on its own initiative rather than relying on filings for recording or requests for review from other state institutions and citizens.

It is important to note that the LAC does not have the formal legal power to strike down unconstitutional or illegal legislation. When the LAC finds any sub-statutory legislation inconsistent with the Constitution and statutes, it will first notify the enacting body informally. Only if the enacting body refused to self-correct the legislation, the LAC would give its advisory opinion, which is not legally binding but only a suggestion.³⁰ If the enacting body refuses to follow the LAC's opinions, then the LAC would advise the NPCSC to repeal that legislation.³¹ In practice, enacting bodies typically accept the LAC's advisory opinion and then revise or repeal unconstitutional and illegal legislation.³²

2.2 Expanded Notion of Constitutional Review

In legal discourse, constitutional review is typically differentiated from judicial review of administrative bodies for their compliance with statutory requirements (the latter is often called administrative review).³³ But Chinese constitutional review embraces both domains. The NPC and NPCSC are empowered to constitutionally review statutes and sub-statutory legislation, as well as to examine the compatibility of sub-statutory legislation with statutes. This reflects a mixed function of Chinese constitutional review—scrutinizing constitutionality and lawfulness. This mixed approach is not unique to China. For example, the Taiwan Constitutional Court has long held that sub-statutory legislation contradicting statutes is unconstitutional.³⁴ In China's context, examining the constitutionality and lawfulness of sub-statutory legislation through R&R is the optimal choice, supported by normative foundations and practical convenience.

In light of the sheer size of China, it is unrealistic for the NPC and NPCSC—the national legislature—to regulate all matters in detail through statutes. The PRC Constitution assigns certain matters exclusively to the legislative authorities of the NPC and NPCSC, such as crimes and criminal penalties, the deprivation of the political rights of a citizen, and administrative measures and penalties involving restrictions of personal freedom.³⁵ At the same time, the Constitution delegates law-making power to administrative bodies, local people's congresses and the judiciary to

²⁹ Work Measures 2019, art 10; Law on Legislation, arts 109 and 110.

³⁰ Wei (2021, pp. 51–52).

³¹ Work Measures 2019, art 44; Law on Legislation, art 112(3).

³² Ying Liang stated in an interview that all LAC's advisory opinions were accepted by rulemaking bodies from 2018 to 2023. See http://news.sohu.com/a/651379031_161795, last visited on May 16, 2023.

³³ Grote (2018).

³⁴ Chang (2020, pp. 279–280). Some Chinese scholars echo to this holding that a legislation violating higher law is void and indirectly defies the Constitution because all legislation is derived from and subordinate to the Constitution. Tang (2020).

³⁵ PRC Constitution, arts 62 and 67; Law on Legislation, art 11.

promulgate supplementary rules and detail implementing rules.³⁶ It delineates the boundary of state organs' law-making powers. Any state organ that exceeds law-making power violates its constitutional duties and, as a result, contradicts the Constitution. Sub-statutory legislation contradicting statutes is deemed null and void and indirectly defies the Constitution. The common scenarios include that local regulations impose additional and heavier administrative penalties³⁷ and judicial interpretations expand the applicable scope of crimes,³⁸ and change basic procedural rules.³⁹

Reviewing the compliance of sub-statutory legislation with statutes and the Constitution through R&R has long been legally recognized. Since 2000 when the NPC enacted China's first Law on Legislation, the LAC has been empowered to examine the compliance of regulations with the Constitution and statutes through R&R.⁴⁰ The R&R Work Measures 2019, which details R&R procedural rules and standards of review, also empowers the LAC to examine whether a regulation contradicts the Constitution and violates the statutes.⁴¹

Although ideally constitutional review should be distinct from the examination of the lawfulness of sub-statutory legislation, this mixed approach is practically necessary in China. A delicate situation is that, although the CLC was empowered to advance constitutional review in 2018, no new constitutional review procedure has yet been introduced. The CLC Work Rules states that "the rules of procedure for the CLC to perform duties related to the work of the Constitution shall be stipulated at another time."⁴² These procedures remain the subject of ongoing debate in China. In this situation, R&R is a ready-made procedure for carrying out constitutional review. *A fortiori*, the CLC operates with approximately 20 part-time members, who concurrently hold esteemed positions in other institutions.⁴³ They convene only once or twice a month—a frequency so limited that it constrains their ability to undertake constitutional review work. In contrast, the LAC, a working body under the NPCSC, has a larger staff and comprises eleven offices, including the R&R Office, Civil Law Office, and Criminal Law Office. In October 2018, the LAC established a new Constitutional Office to support constitutional review. Ying Liang, the then Director of the R&R Office, asserted that "addressing constitutionality and constitutional-related issues [of legislation] via R&R is not only an effective way for the NPCSC to perform its constitutional oversight duties but also a good approach to interpreting, promoting and popularizing the Constitution."⁴⁴

³⁶ PRC Constitution, arts 89 and 100; Law on Legislation, arts 72 and 82.

³⁷ R&R Work Report (2017, p. 126); R&R Work Report (2020, p. 353); R&R Work Report (2021, p. 246).

³⁸ R&R Work Report 2022, p. 154.

³⁹ R&R Work Report 2017, p. 126; R&R Work Report 2018, p. 330.

⁴⁰ Law on Legislation, arts 108, 110 and 112.

⁴¹ Work Measures 2019, arts 36 and 38.

⁴² Hand (2022, p. 152).

⁴³ See http://www.npc.gov.cn/zgrdw/npc/bmzz/falv/node_34375.htm, last visited on May 15, 2023.

⁴⁴ See Ying Liang's interview with South Metropolitan News, http://news.sohu.com/a/651379031_161795, last visited on May 16, 2023.

To summarize the Chinese constitutional review model, it comprises *ex ante* scrutiny and *ex post* review, with the *ex post* review being a prominent part. China commanded the advancement of constitutional review in 2018 but did not introduce new procedures. Instead, it continues the ready-made procedure—R&R, a mixed approach by which the NPCSC examines the constitutionality and lawfulness of sub-statutory legislation.

2.3 Active Constitutional Review

Since 2018, constitutional review, especially R&R, has gained traction.⁴⁵ The activeness of R&R is phenomenal. The foremost and conspicuous change is the enhancement of visibility. The LAC began to submit year-end reports on R&R to the NPCSC. These reports are comprehensive in nature, encompassing an array of information. Among the disclosed are statistics on the quantity of legislation filed for recording, the volume of review upon request, digests of selected cases, and priority areas for forthcoming work. The institution of this annual reporting mechanism has elevated the transparency of R&R and fostered greater public awareness of constitutional review.

Another compelling indication of the activeness of Chinese constitutional review lies in the unprecedented increase in caseload, as depicted in Table 1. The workload borne by the LAC is very intense. Over the past seven years (2018–2024), the LAC received 21,945 review requests and 10,579 pieces of legislation submitted for recording. There was a surge in caseload, particularly post-2020, attributed to a sharp rise in review requests from individuals. Apart from the surge in review requests, the LAC launched many rounds of targeted reviews on its own initiative. These targeted reviews encompassed various thematic domains, including election, population and birth-control policies, food and drug safety, the improvement of the business environment, and COVID-19 controls. Each round of targeted review identified a certain number of sub-statutory legislation inconsistent with statutes and the Constitution.

Finally, the activeness of Chinese constitutional review is exemplified by the substantial body of sub-statutory legislation deemed unlawful and unconstitutional. According to the NPCSC's work report, the LAC identified around 25,000 pieces of sub-statutory legislation as unconstitutional and unlawful between 2018 and 2022 (averaging approximately 5000 pieces per year) by all three review methods.⁴⁶

Despite the increasing visibility of constitutional review and the noticeable rise in cases, the vast majority of decisions remain undisclosed. Every year, the LAC highlights a limited number of cases in its annual work reports (73 cases in total between 2017 and 2024). Apart from these reports, the LAC published a case compilation in

⁴⁵ Liu (2025, p. 3).

⁴⁶ The NPCSC Work Report (Quanguo Renmin Daibiao Dahui Changwu Weiyuanhui Gongzuo Baogao), March 7, 2023. http://www.npc.gov.cn/npc/c2/c30834/202303/t20230317_428429.html, last visited on April 23, 2025. Although the NPCSC did not detail the number of changes made to legislation came from the request of citizens, the overall number is stunning, underscoring the transformative impact of constitutional review endeavors.

2020. The transparency of Chinese constitutional review remains a concern. This article acknowledges the limitation of the study due to the opaque operation of constitutional review. But these selective cases reflect, at least to some extent, the institutional attitude, methods, restraints, and the development expectation of Chinese constitutional review.

3 Positive Effects of Chinese Constitutional Review on the Rule of Law

The proliferation of constitutional review is often associated with and explained by widely shared and overlapping principles such as constitutionalism, the rule of law, and respecting individual rights and dignity. Admittedly, there is no universally accepted definition of “constitutionalism”, “rule of law” and “human dignity”. But the core elements of these concepts are broadly acknowledged: ensuring governments exercise power legally, holding governments accountable, promulgating general, clear, prospective and stable laws, keeping legal systems consistent, and protecting individual rights from illegal encroachments.⁴⁷ China’s constitutional review addresses typical issues common to constitutional courts and supreme courts worldwide: protecting individual rights, resolving conflicts between laws of higher- and lower-ranking laws, and maintaining the relative powers both vertically (between central and local authorities) and horizontally (among branches of government).⁴⁸ This part examines three groups of cases, highlighting the positive effect of Chinese constitutional review on its rule of law. It argues that its role in protecting of individual rights, improving of the consistency of Chinese legal system, and examining of the exercise of legislative power by state organs cannot be overlooked.

The first group of constitutional review cases concern individual rights protection and these cases have indicated that constitutional review is becoming an additional conduit for safeguarding individual rights and freedoms from legislative encroachments. Among the 73 cases in the LAC annual work reports between 2017 and 2024, half of them pertained to individual rights, including property rights,⁴⁹ the right to family life,⁵⁰ the right to use minority language,⁵¹ the right to privacy,⁵² the right to employment,⁵³ and the freedom of marriage⁵⁴. The LAC has made many affirmative

⁴⁷ Zhang (2017, p 377-378); Thio (2012).

⁴⁸ While some constitutional courts and supreme courts exercise review over the constitutionality of constitutional amendments and political party dissolution, these matters have not been raised in Chinese constitutional review. The PRC Constitution remains ambiguous regarding whether the NPCSC has the competence over these issues.

⁴⁹ R&R Work Report (2020, pp. 353-354).

⁵⁰ R&R Work Report (2019, p. 242).

⁵¹ R&R Work Report (2020, p. 353).

⁵² R&R Work Report (2021, p. 246).

⁵³ R&R Work Report (2021, p. 246).

⁵⁴ R&R Work Report (2021, p. 247).

Table 1 The number of sub-statutory legislation reviewed per year

Year	Review after recording	Review upon request	In total
2018	1238	112	1350
2019	1485	138	1623
2020	1310	3378	4688
2021	1921	5741	7662
2022	1307	4067	5374
2023	1319	2827	4146
2024	1999	5682	7681
In total	10,579 (Around 1511 per year)	21,945 (Around 3135 per year)	32,524 (Around 4646 per year)

Source the LAC annual reports on R&R

decisions supporting individual rights petitions. Ying Liang, the then Director of the R&R office of the LAC once stressed:

“The NPCSC has continuously opened up channels for the expression of people’s interests, listened to the people’s voice, drawn on the people’s wisdom, protected the people’s interests, improved the quality of the recording and review work, and upon people’s request, urged the correction of a number of regulations, judicial interpretations and other documents that affect people’s vital interests and directly influence their rights and obligations.”⁵⁵

This article outlines three classic and significant cases concerning the right to liberty, equal protection and the freedom of occupation.

In 2006, the Supreme People’s Procuratorate (SPP) issued the Quality Standard for Arrest Review, a judicial interpretation, which authorized the prosecutors to approve the conditional arrest for suspects in some serious crimes even if the evidence is insufficient. This judicial interpretation lowered the statutory standard of proof for arrest. While this measure was aimed to facilitate criminal investigations, it heightened the risk of unlawful detention and attracted criticism for violating the right to liberty from its inception.⁵⁶ In 2016, Yongjun Miao, a lawyer from Inner Mongolia, requested the LAC to review this SPP interpretation, arguing that the SPP interpretation was unconstitutional on the grounds that judicial interpretations cannot impose restrictions on personal liberty, which must be prescribed by statutes. During the review process, the LAC liaised with the SPP. However, the SPP refused to repeal conditional arrest insisting that it is consistent with the Constitution and the Criminal Procedure Law.⁵⁷ The LAC contended that the SPP created an additional set of rules of arrest beyond those outlined in the Criminal Procedure Law,

⁵⁵ Ying (2021).

⁵⁶ Zhang (2009, p. 157).

⁵⁷ The LAC Recording and Review Office (2020, pp. 98–99).

which was unlawful and should be corrected.⁵⁸ The SPP eventually accepted the LAC's opinion and announced that the conditional arrest ceased to be implemented from April 2017.

The R&R Work Report 2020 presented by the LAC featured two cases concerning discrimination and equal protection. The first case addressed an interpretation issued by the SPC concerning compensation for personal injury, which had the effect of establishing two standards for death compensation, one for urban residents and one for rural residents (the former can get much more compensation than the latter). Termed "same life, different values", this discriminatory treatment has drawn criticism since its inception in 2003. The SPC repealed this differential treatment after the LAC's review.⁵⁹ The second case centred on local regulations that restricted the operation of taxi services to individuals possessing local household registration (*hukou*) or temporary residence permits, effectively excluding residents from other regions. Sujun Zhang, an NPC deputy, suggested the LAC review these regulations on the grounds of discrimination. The LAC determined that such market entry limitation was inconsistent with the constitutional principle of equality and the CCP Central Committee's policy of facilitating the flow of labour, creating an equal employment environment, eliminating discrimination based on identity and gender, and ensuring the urban and rural labour enjoy the equal right to work.⁶⁰ The LAC ordered the regulation-makers to amend the rules.

The second group of constitutional review cases examined the conflicts between higher- and lower-ranking laws, contributing significantly to improving the coherence of the Chinese legal system. Chinese legal system is complex due to the multi-layer legal sources promulgated by multiple state institutions. Besides the central state institutions, local governments and people's congresses enjoy wide legislative remit. Constitutional review, especially through R&R, is enhancing the internal consistency within China's legal system. For example, China amended the Population and Family Planning Law and lifted the "One Child" policy in 2015. But some local regulations continued the "One Child" policy and required employers to dismiss employees who breached the birth limits.⁶¹ In May 2017, four legal scholars requested the LAC to review those local regulations. They argued that the mandatory firing rules violated the Labor Law and were inconsistent with the state's new population policies.⁶² All those regulations were repealed after receiving the LAC's suggestions.⁶³ Another example is a targeted review of sub-statutory legislation for

⁵⁸ The LAC Recording and Review Office (2020, p. 99).

⁵⁹ R&R Work Report (2020, p. 353).

⁶⁰ R&R Work Report (2020, p. 354). Liang Ying expressly stated in a television interview that the market-entry limitation is inconsistent with equal protection enshrined in the Constitution. Focus Report (Jiaodian Fangtan). <http://tv.cctv.com/2021/12/05/VIDE9smWCc6NydSGUcugvhE211205.shtml?srcfr om=baidualading>, last visited on March 13, 2023.

⁶¹ Is it proper to dismiss an employee for having more than one child? Experts: Violation of Labour Law (Zhigong Chongsheng Ji Citui Shuofa Kequ Me? Zhuanjia: Weifan Laodong Fa), Xinhua Net (Xinhua Wang), available at http://www.xinhuanet.com/politics/2017-10/24/c_1121846140.htm, last visited March 29, 2023.

⁶² The LAC Recording and Review Office (2020, p. 47).

⁶³ The LAC Recording and Review Office (2020, pp. 47-48).

their compliance with the Civil Code. In 2020, China enacted its first-ever Civil Code, marking a milestone in its legal history. Immediately following its enactment, a targeted review identified more than 2,800 pieces of sub-statutory legislation that were inconsistent with the Civil Code.⁶⁴ This targeted review, along with many other rounds, significantly enhanced the consistency and coherence of China's legal system.

The last group of constitutional review cases examined the legislative competence of enacting bodies, enhancing governmental accountability and maintaining vertical and horizontal power allocations. For example, the repealing of the judicial interpretation on conditional arrest corrected the SPP's ultra vires because only the NPC and the NPCSC can legislate on matters of criminal procedures and restrictions on individual liberty. For another example, in R&R Work Report 2020, the LAC disclosed a case concerning a local regulation that required individuals to obtain permission from local authorities before trimming trees. The LAC determined that this requirement constituted an administrative license and that the power to establish administrative licenses falls under the authority of the State Council. The local authority has exceeded its competence and the local regulation was unlawful.⁶⁵

In summary, the increasingly active constitutional review in China has yielded some positive effects, including protecting individual rights, enhancing the consistency of the legal system, and ensuring the government exercises power lawfully. But these developments represent only one dynamic of Chinese constitutional review. Embedded in the world's largest socialist and authoritarian state, the Chinese constitutional review has a second dynamic – upholding the leadership of the CCP. The following section unveils this second dynamic and its tension with the first.

4 Upholding the Party's Leadership

4.1 Politically Embedded Constitutional Review: Commitment to the Rule by the Party

Transplanted to authoritarian states, liberal democratic principles such as independent constitutional review and the supremacy of the rule of law often undergo adjustment.⁶⁶ Likewise, constitutional review in China has been adapted to uphold the leadership of the CCP, which is its second dynamic of Chinese constitutional review and is abundantly evident in both practice and discourse.

First and foremost, the NPCSC is an acute follower of the Party's policies. Upholding the leadership of the CCP has been enshrined as a general principle of constitutional review by the NPCSC. Article 3 of the R&R Work Measures 2019 states: "The NPCSC is to perform R&R in accordance with the Constitution and laws, *to ensure the strict enforcement of the orders and prohibitions of the CCP Central Committee...*" In 2023, the NPCSC made the Decision on Improving and

⁶⁴ R&R Work Report (2020, pp. 351-352).

⁶⁵ R&R Work Report (2020, p. 353).

⁶⁶ Dixon and Landau (2021).

Strengthening the System of Recording and Review and expressly demonstrated its loyalty to Xi Jinping and the CCP. Article 1 of that Decision states that “To carry out R&R according to law, the NPCSC is to *follow the guidance of the Xi Jinping Thought on Socialism with Chinese Characteristics for a New Era, to implement the Xi Jinping Thought on the Rule of Law and to uphold the organic unity of the Party’s leadership...*”

One salient example is the NPCSC being committed to actualizing the concept of “whole-process people’s democracy” through R&R.⁶⁷ In 2021, Xi Jinping stressed in a speech commemorating the CCP’s centenary that whole-process people’s democracy was China’s socialist democracy model.⁶⁸ This phrase has shortly become a part of the CCP’s theory of China’s socialist democracy, aiming to distinguish it from Western liberal constitutional democracy. Promptly after the issuance of the White Paper *China: Democracy that Works*, the LAC highlighted that it had expanded the review request channel by building an online platform and that it was inspired by, and aimed to implement, whole-process people’s democracy.⁶⁹

The second group of evidence of upholding the Party’s leadership is launching targeted reviews to oversee the implementation of the CCP’s policies. Between 2017 and 2022, the LAC conducted over twenty rounds of such reviews, some specifically aimed at advancing the CCP’s key policies and work priorities. In 2017, the LAC initiated a targeted review against legislation concerning natural reserves protection promptly subsequent to the issuance of the Circular of the General Office of the CCP Central Committee and the General Office of the State Council on the Environment Problems of Qilian Mountain National Nature Reserve in Gansu Province.⁷⁰ Echoing the opinions of the CCP Central Committee and the State Council on Strengthening the Protection of the Ecological Environment in All Aspects and Firmly Winning the Battle of Preventing and Controlling Environmental Pollution of 2018, the LAC continued the targeted review in the area of environmental protection.⁷¹ In 2019 and 2020, the LAC targeted legislation in relation to food and drug safety after Xi Jinping’s instruction to implement the Four Strictest Requirements (strictest Standards, Regulation, Punishment, and Accountability).⁷² Four rounds of targeted review undertaken in 2020 aimed to implement Xi Jinping and the CCP Central Committee’s instructions on wild animal protection, COVID-19 Control, business environment improvement, and the implementation of the Civil Code, respectively.⁷³ In 2021, the LAC initiated a targeted review of birth-control-related legislation after the Decision of the CCP Central Committee on Improving

⁶⁷ R&R Work Report (2022, pp. 155-157 and 159).

⁶⁸ Xi Jinping: Speech on the 100th Anniversary Conference of the Establishment of the CCP (Xi Jinping: Zai Qingzhu Zhongguo Gongchan Dang Chengli 100 Zhounian Dahui Shang De Jianghua. http://www.xinhuanet.com/politics/leaders/2021-07/15/c_1127658385.htm, last visited on March 31, 2023.

⁶⁹ R&R Work Report (2022, p. 159).

⁷⁰ R&R Work Report (2017, p. 127).

⁷¹ R&R Work Report (2018, pp. 328-329); R&R Work Report (2019, p. 243).

⁷² R&R Work Report (2019, p. 243); R&R Work Report (2020, p. 352).

⁷³ R&R Work Report (2020, pp. 351-352).

Birth Policies to Promote Long-term Balanced Population Growth.⁷⁴ The Circular of the Central Committee of the CCP and the State Council on Further Promoting the Nationwide Battle to Prevent and Control Pollution led to a targeted review of anti-pollution sub-statutory legislation in 2022.⁷⁵

The outcome of these targeted reviews is astonishing. The NPCSC has highlighted that over 12,000 pieces of legislation related to environmental protection, 4235 pieces related to population and birth control, 4012 pieces pertaining to administrative punishment, 419 pieces about wild animal protection, 322 pieces concerning Yangtze River protection, and 91 pieces regarding drug and food safety had been repealed and amended after targeted review.⁷⁶

The third group of evidence that constitutional review upholds the Party's leadership lies in the fact that CCP policies often serve as the grounds for constitutional review outcomes. The "One Child" policy case discussed above is a landmark case because for the first time, the LAC explicitly referred to the CCP's policies and decisions as a basis of its review decision:

In recent years, China's demographic development has undergone significant and transformative changes. In order to adapt to this new population and socio-economic development situation and promote long-term balanced population development, the Third Plenary Session and the Fifth Plenary Session of the 18th CCP Central Committee have made significant adjustments to birth planning policies... *Local legislation should actively adapt to the spirit of the CCP Central Committee's requirement for reforming and improving birth planning services and management, and should timely adjust relevant provisions in local population and birth planning regulations that are inconsistent with the direction of the reform and the spirit of the policy. It is recommended that, in accordance with the spirit of the CCP Central Committee and in the light of the actual situation in the province, amendments should be made as soon as possible to relevant local regulations that contain severe control measures and penalties.*⁷⁷

Following this, the LAC often makes review decisions according to the CCP's policies, decisions and orders, including those relating to all-round reforms, judicial reform, eco-environmental protection, and political reform.⁷⁸

The final group of evidence illustrating the constitutional review's role in upholding the Party's leadership lies in the use of R&R work reports as an instrument of CCP's propaganda. The word "Party (*dang*)" appeared 124 times in the R&R Work Reports between 2017 and 2024—averaging 18 mentions per report. The high frequency underscores the NPCSC's loyalty to the CCP and its close alignment with the CCP's priorities. Additionally, among the limited number of disclosed cases, many closely track the CCP's policies. For example, cases concerning mandatory

⁷⁴ R&R Work Report (2021, p. 245).

⁷⁵ R&R Work Report (2022, p. 154).

⁷⁶ R&R Work Report (2020, p. 352); R&R Work Report (2021, p. 245).

⁷⁷ The LAC Recording and Review Office (2021, pp. 50–51).

⁷⁸ The LAC Recording and Review Office (2021, pp. 53, 117, 154, 200).

dismissal for violating birth limits and the market entry limitation imposed on taxi services explicitly cited the CCP's population policies and plans for optimizing the business environment. These selective disclosures strategically promote the Party's policies and reinforce its narrative as a governing force committed to the public good and responsive to societal needs.

4.2 Prevailing the Party's Policies Over the Rule of Law and Constitution

Arguably, some CCP's policies and commands promote constitutionalism, individual rights protection and the rule of law in terms of their effectiveness. After all, the CCP wields ruling legitimacy from these developments.⁷⁹ But there are certain situations where these constitutional principles come into conflict with the Party's interests and goals. They are often sacrificed for the latter in constitutional review, ensuring the Party's supremacy.

In virtue of the legislative process, the CCP can transfer its policies to national laws. *Ex ante* review of legislative bills sometimes even justifies the CCP's policies that blatantly contradict the Constitution. In 2021, the NPCSC amended the Audit Law. One of the major changes was extending the scope of government audits and covering non-state financial institutions.⁸⁰ But this change is inconsistent with Article 91 of the PRC Constitution, which states that the State Council establishes an audit office to examine the revenue and expenditure of its departments, local governments, and state financial institutions,⁸¹ and this excludes non-state financial institutions. The purview of the new Audit Law is apparently wider than that provided for by the Constitution. The CLC and the LAC held an opinion that the expanded scope of audit would guarantee the implementation of the plans of the CCP Central Committee to reform the audit management system and ensure audit plays a better role in the supervision system of the Party and the State.⁸²

Restricting the right of ethnic minority groups to their own language is another example which hit the headlines of international media.⁸³ This case reveals that the LAC's application of the PRC Constitution provisions involves cherry-picking and selective enforcement depending on the CCP's needs and preferences. Article 4 of the PRC Constitution guarantees equality between all ethnicities and especially protects the freedom of the minority to use their own languages and scripts. However, since Xi Jinping came to power, forging a strong sense of community for the

⁷⁹ Cheng (2025).

⁸⁰ Audit Law, art. 22.

⁸¹ PRC Constitution, art 91.

⁸² Wu et al. (2023, pp. 605-606).

⁸³ Rare rallies in China over Mongolian language curb, BBC (Sept. 1, 2020). <https://www.bbc.co.uk/news/world-asia-china-53981100>, last visited on March. 30, 2025. China cracks down on Inner Mongolian minority fighting for its mother tongue, Los Angeles Times, (Sept. 3, 2020). <https://www.latimes.com/world-nation/story/2020-09-03/china-inner-mongolia-bilingual-education-assimilation-xinjiang-resistance-crackdown>, last visited on March. 30, 2025.

Chinese nation has been a guideline of the CCP's work on ethnic affairs.⁸⁴ As part of this effort, schools in ethnic autonomous regions are required to use Mandarin as the language of instruction. This directive has faced resistance from China's ethnic minorities.⁸⁵ The Regulation of Inner Mongolia Autonomous Region on Ethnic Education stipulates that ethnic schools should mainly use minority languages.⁸⁶ The CCP Central Committee was outraged and sent an inspection team to Inner Mongolia to urge the implementation of the CCP's language policy.⁸⁷ At the same time, the Ministry of Education requested the LAC to review the constitutionality of the Regulation of the Inner Mongolia Autonomous Region on Ethnic Education. Not even mentioning Article 4, the LAC declared that the regulation was inconsistent with the constitutional requirement of promoting Mandarin provided for in Article 19(5) of the Constitution.⁸⁸ Due to the political pressure and an unfavourable constitutional review decision, the People's Congress of Inner Mongolia Autonomous Region eventually repealed the regulation and replaced it with a new one that made Mandarin the primary teaching language in ethnic schools.⁸⁹ The PRC Constitution contains a tension between protecting ethnic minorities' right to use their own languages and promoting the use of Mandarin. This dilemma calls for careful balancing. But LAC deliberately avoided mentioning Article 4, which safeguards minority language rights, and instead relied on Article 19(5), which promotes Mandarin, aligning with the CCP's policies.

Another example happened during the pandemic between 2020 and 2022, when the CCP strictly enforced the "Zero-Covid" policy.⁹⁰ Many local people's congresses passed emergency regulations to authorize governments to make epidemic prevention rules on lockdown, mandatory testing, quarantine, health codes, and vaccinations.⁹¹ These regulations and rules imposed severe restrictions on citizens' liberty and privacy, and in some areas the stringent law implementation denied access

⁸⁴ Xi Jinping attended the Central Ethnic Work Conference and delivered an important speech (Xi Jinping Chuxi Zhongyang Minzu Gongzuo Huiyi Bin Fabiao Zhongyao Jianghua). http://www.news.cn/politics/leaders/2021-08/28/c_1127804865.htm, last visited on August 30, 2023.

⁸⁵ 'China cracks down on Inner Mongolian minority fighting for its mother tongue', Los Angeles Times, 3 September 2020. <https://www.latimes.com/world-nation/story/2020-09-03/china-inner-mongolia-bilingual-education-assimilation-xinjiang-resistance-crackdown> (last visited Aug. 30, 2023).

⁸⁶ Regulation of Inner Mongolia Autonomous Region on Ethnic Education (Neimenggu Zizhiqu Minzu Jiaoyu Tiaoli) (promulgated on September 29), arts. 2, 12-14.

⁸⁷ Briefing by the CCP Committee of Inner Mongolia Autonomous Region on the Progress of Rectification and Reform of the Sixth Round of the 19th Central Committee Inspection (Zhongguo Neimenggu Zizhiqu Weiyuanhui Guanyu Shijiujie Zhongyang Diliulun Xunshi Zhengai Jinzhang Qingkuang de Tongbao). https://www.ccdi.gov.cn/yaowen/202110/t20211023_252738.html, last visited on March 30, 2025.

⁸⁸ R&R Work Report (2021, p. 246).

⁸⁹ Regulation of Inner Mongolia Autonomous Region on Education (Neimenggu Zizhiqu Minzu Jiaoyu Tiaoli) (promulgated on September 29, 2021), arts 9 and 10.

⁹⁰ For example, the Standing Committee of the People's Congress of Beijing passed the Decision on Preventing and Controlling Covid, Article 1 of which empower the government to issues pandemic control orders and rules. https://www.beijing.gov.cn/zhengce/dfxfg/202002/t20200207_1626510.html, last visited on March 30, 2025.

⁹¹ Ong (2023, p. 32).

to food and health care.⁹² The LAC launched a targeted review and affirmed the legality of those regulations, concluding that the enabling provisions did not violate Article 82 of the Law on Legislation which permits local governments to formulate rules to address urgent administrative management needs.⁹³

In a nutshell, once transplanted to China's party-state political and legal context, constitutional review is tightly coupled with the CCP's policies. The political loyalty to the leadership of the CCP has, to some extent, distorted constitutional review. There are cases where constitutional review has been deployed to justify and enforce the CCP's policies that defy the Constitution, violate people's rights, and damage the rule of law. This represents the second dynamic of Chinese constitutional review: one that stands in tension with, and at times in opposition to, the principles of constitutionalism and the rule of law.

5 Explaining the Two Dynamics of Chinese Constitutional Review

How should we understand the two dynamics, their tension, and prioritization? This part seeks to provide plausible explanations through the lens of the Chinese rule of law narrative, especially in Xi Jinping's era.⁹⁴ Fieldwork in China has become increasingly difficult since Xi's ascension to the leadership of the CCP.⁹⁵ The internal operations of the Chinese state apparatus, and their personnel and politics are rarely opened to external inquiry. Additionally, Chinese officials are known for their caginess.⁹⁶ However, by examining the decisions of the CCP Central Committee and Xi's speeches, the rationale of Chinese constitutional review can be discerned because these decisions and speeches often set the tone for state politics and provide directions for reforms and policy shifts. Since 2012, Xi and the CCP Central Committee have mentioned "constitution" and "constitutional review" more frequently than their predecessors did.⁹⁷ Moreover, they have used the terms in much more important decisions and speeches on the Chinese rule of law. Their importance is exemplified and reinforced by study groups and meetings organized regularly within the party and the government, from the central to the local.⁹⁸

⁹² China Covid lockdowns leave residents short of food and essential items, BBC (Sept. 22, 2022), <https://www.bbc.co.uk/news/world-asia-china-62830326>, last visited on March 30, 2025); Just Bread and Noodles: China's Covid Lockdown Distress Hits Xinjiang, New York Times (Sept. 22., 2022), <https://www.nytimes.com/2022/09/11/world/asia/xinjiang-china-covid-lockdown.html>, last visited on March 30, 2025).

⁹³ R&R Work Report (2020, p. 351)

⁹⁴ The CCP's narrative of the rule of law in Xi Jinping's era attracted extensive scholarly attention and curiosity. The Hague Journal on the Rule of Law in 2015 publish three articles and two conversations discussing Chinese rule of Law; and in the year 2025, it has already published three articles on this topic.

⁹⁵ Harlan (2019, pp. 116-119).

⁹⁶ Truex (2024, pp. 146-148).

⁹⁷ Zhang and Ginsburg (2019, pp. 347-349)

⁹⁸ Tian and Tsai (2020); Choi (2024).

The CCP has rhetorically recognized the rule of law.⁹⁹ At the same time, it firmly believes the wholesale Western rule of law is not suitable for China.¹⁰⁰ The CCP has long been promoting its own version of rule of law with Chinese characteristics that are different from the global dominant liberal democratic one, which is associated and consistent with limited power, constitutionalism and judicial independence.¹⁰¹ In 2014, the CCP, for the first time, convened a central committee plenary session addressing issues on the rule of law, which was concluded with the Decision concerning Several Major Issues in Comprehensively Advancing Governance According to Law (2014 Decision).¹⁰² This decision set the legal reform agenda and opened up “prospects of a new chapter” in shaping the Chinese rule of law.¹⁰³ The CCP made the construction of a socialist rule system and a socialist rule of law state the ultimate goals of the Chinese rule of law. Not only did it enshrine general principles of reform, including “the leadership of the CCP,” “the dominant position of the people,” and “equality before the law”,¹⁰⁴ but also pointed out positive steps to forward rule of law construction, including strengthening R&R and revoking unconstitutional and illegal legislation.¹⁰⁵

In November 2020, Xi delivered a speech at the first Central Conference on Work related to Overall Law-Based Governance” (2020 Speech) which further detailed the construction of the rule of law and emphasized that “eleven upholds” must be achieved,¹⁰⁶ with “uploading the comprehensive leadership of the CCP”, “upholding the central status of the people”, and “uploading the rule of law of Chinese socialist characteristics” being the top three principles.

These texts are revealing in the sense of highlighting the dual nature of China’s rule of law: safeguarding people’s rights and the authority of the constitution and law while upholding the CCP’s leadership. Though not explicitly referencing to the term, the 2014 Decision and the 2020 Speech continued and reflected the notion of the “Three Supremes” introduced by Hu Jintao: the supremacy of the Party; the supremacy of the interests of the people; and the supremacy of the constitution and laws. The “Three Supremes” succinctly capture the duality of China’s rule of law in a more straightforward manner.

⁹⁹ Lavička (2025, p. 15).

¹⁰⁰ Zhu (2015).

¹⁰¹ Zhang (2017, p 377-378); Thio (2012).

¹⁰² Decision of the Central Committee of the CCP on Several Major Issues Concerning Comprehensively Advancing Law-Based Governance of the Country (Zhonggong Zhongyang Guanyu Quanmian Tuijin Yifa Zhiguo Ruogan Zhongda Wenti de Jueding Zhongguo Zhengfu Wang), October 28. 2014. https://www.gov.cn/zhengce/2014-10/28/content_2771946.htm, last visited on June 14, 2023.

¹⁰³ Zhu (2015).

¹⁰⁴ See Part One of the 2014 Decision.

¹⁰⁵ See Part Two (I) of the 2014 Decision.

¹⁰⁶ Unwaveringly Walk the Path of Socialist Rule of Law with Chinese Characteristics, Provide Strong Legal Safeguards for the Construction of a Modern Socialist Country in All Aspects (Jianding Buyi Dezou Zhongguo Tese Shehui Zhuyi Fazhi Daolu, Wei Quanmian Jianshe Shehui Zhuyi Xiandaihua Guojia Tigong Youli Fazhi Baozhang), November 16, 2020. http://www.qstheory.cn/dukan/qs/2021-02/28/c_1127146541.htm, last visited on May 14, 2025.

The “Three Supremes” and the duality of the rule of law often invite criticisms of inconsistency and oxymoron.¹⁰⁷ Indeed, there are situations where “Three Supremes” contradict each other, leading to the questions of how to balance them and which prevails. In the 2020 Speech, Xi explicitly responded that the Party “must not be vague or ambiguous but must provide a clear answer” and requested all party comrades to bear in mind that:

“The Party’s leadership is the soul of China’s socialist rule of law and the most fundamental distinction between our rule of law and that of Western capitalist countries. Without the Party’s leadership, the comprehensive advancement of the rule of law would be difficult to achieve effectively, and a socialist country governed by law could not be built.”

This statement reiterates the paramount leadership of the Party and the hierarchy between the dual dynamics of Chinese rule of law by upholding the supremacy of the CCP and prioritizing the Party’s interest.

On the other hand, in some situations, the interest of the Party, the people’s rights, and the authority of law do not conflict with each other. The CCP’s political construction is designed to justify and consolidate its ruling legitimacy, which is usually pinned on economic development, a stable and safe society, and the comprehensive improvement of people’s lives.¹⁰⁸ Safeguarding individual rights, providing general, stable and consistent legal systems, and ensuring proper law enforcement and government accountability offer justification and legitimacy to the CCP’s rule. To implement its policies and achieve these aims that are of a pragmatic nature make the professionalized legislation and enforcement indispensable.¹⁰⁹ The CCP leaders have long acknowledged the significance of law and sought to strengthen it to empower its ruling.¹¹⁰ Since the Reform and Opening, the Chinese legal system has been increasingly and gradually improved, which now ensures and protects property rights, market economy, freedom of contract and transaction etc, and provides dispute resolution platforms, including courts, arbitration, and mediation. The CCP under Xi Jinping has invested much more in socialist legality and attached increasing importance to ruling legitimacy to law, including judicial reform, advancing constitutional review, and enhancing public participation in legislative processes.¹¹¹ Exemplified by the 2014 Decision, it elevated the PRC Constitution. “Constitution” was used 38 times in the decision. This is the first CCP resolution that contained the assertion “To persist in ruling the state according to the law, we must first and foremost persist in ruling the country according to the Constitution, to persist in governing according to the law, we must first and foremost persist in governing according to the Constitution.”¹¹²

¹⁰⁷ Peerenboom (2015, p. 55); Lavička (2025, p. 13).

¹⁰⁸ Peerenboom (2002, p. 60); Hand (2022, pp. 166–167).

¹⁰⁹ Zhang (2017, p. 389).

¹¹⁰ Zhang and Ginsburg (2019, p. 309).

¹¹¹ Zhang and Ginsburg (2019, pp. 357–358).

¹¹² See Part Two (I) of the 2014 Decision.

Embedded in China's legal-political context and as an essential component of China's rule of law reconstruction, constitutional review in China is attached to the duality of the rule of law. Constitutional review decisions in the past few years have already shown two dynamics. On the one hand, it provides citizens with an additional channel for challenging legislation and improves the consistency of the legal system through large-scale targeted reviews. On the other hand, it enforces the Party's policies and supervises the implementation of these policies. When calls for individual rights and the rule of law are in conflict with the Party's commands and policies, the latter prevails at the cost of the former. In these situations, constitutional review does not play a role in safeguarding human rights but may be seen as an assault on human rights and the rule of law.

For its critics, in the shadow of the Party's leadership, "rule according to the law" is not a genuine rule of law, but rather a rule by law which means authoritarian rulers are above the laws and apply the laws for their governance purpose.¹¹³ Some have argued that the recent constitutional review in China, like many other legal institutions, is an instrument deployed by the CCP to centralize authorities, discipline the bureaucracy, contain people's rights claims, and ensure the implementation of central policies across the state.¹¹⁴ This opinion reveals one of the two dynamics of Chinese constitutional review but overemphasizes the CCP's manipulation of constitutional review. Although this article agrees that constitutional review is deployed as a governance tool in some cases, it is vigilant to avoid such a pan-politicalized understanding of China's constitutional review.¹¹⁵ The views that reduce Chinese constitutional review to be a pure tool of the CCP's rule deny the NPCSC's autonomy and the participation of individuals and other actors and neglect the rationality and value of constitutional review in regulating modern society.

As demonstrated in the introduction of China's distinctive constitutional review system, individuals can request the NPCSC to review legislation, and the NPCSC can mount targeted reviews on its own initiative. These two mechanisms are becoming the most important sources of cases, with thousands of pieces of sub-statutory legislation examined. Four decades of legal reforms and advocacies have not only built the infrastructure of the legal systems and institutions but enlightened citizens and officials with the rule of law and fostered a culture of rule of law among some.¹¹⁶ Citizens are playing a more active role in Chinese constitutional review. For example, Hongbin Pan requested the NPCSC to review a local regulation of Hangzhou City that introduced additional administrative compulsory measures

¹¹³ Pils (2023).

¹¹⁴ Hand (2022, p. 167); Zhang and Ginsburg (2019, p. 309).

¹¹⁵ This article referred to the term "pan-politicalized of law in China" suggested by Xiaodan Zhang. By this terminology, Zhang suggested that a type of evaluation of Chinese law and enforcement that are political and ideological led. A pan-politicalized understanding of law in China distrusts the legal systems under the CCP's leadership. It questions the political and ideological legitimacy of the Chinese legal system and ignores the nature and value of the legal system in regulating modern society. A pan-politicalized understanding of law in China often starts from Western notion of rule of law, including liberty, human rights, separation of power, open and fair democratic election, judicial independence and deploy these values as criteria to evaluate Chinese legal system. Zhang (2017, p. 388).

¹¹⁶ Pils (2023, p. 350).

beyond the national law. Zhujun Miao's petition led to the repeal of the conditional arrest. Four labour law scholars challenged regulations that required employers to lay off employees who breached the birth limits. The rise in review requests, from 112 in 2018 to 5,682 in 2024, reflects the growing public recognition that the constitutional review is a powerful tool to protect their rights and regulate the behaviour of governments.

Additionally, the professionalization of legal work within the NPCSC reinforces the broader institutionalization and authority of law in China. The LAC staff are legal experts having work experience in central and local legislatures, courts, and procuratorates. Around half of the members of the R&R office under the LAC have doctoral and master's degrees.¹¹⁷ The leadership of the Party and subservience to the wills of the CCP do not necessarily indicate that the autonomy of the NPCSC and LAC is not completely deprived. They at least enjoy autonomy and independence in certain areas that does not contradict the Party's interests and wills. There are many constitutional review cases that were decided according to the law, instead of the Party's policies. Targeted reviews are not launched merely to enforce the Party's policies. Rather, many rounds of targeted review have sought to improve the consistency of laws and resolve common issues of laws.

More importantly, the pan-politicalized view underestimates the rationality and value of constitutional review in advancing the rule of law in China. When evaluating constitutional review in China, even these experts on Chinese rule of law are easily inclined to the pan-politicalized view, holding no confidence in both NPCSC's constitutional supervision and R&R.¹¹⁸ Though the Party's leadership and political control dominate Chinese reform and administrative affairs are intrinsically intertwined with politics,¹¹⁹ there are still areas that are social and economic oriented, semi-autonomous, rule-based and less political. The private law system, as Hualin Fu observed, is vibrant, professionalized and semi-autonomous with comparatively limited Party repression.¹²⁰ In these social and economic areas, an enclave in authoritarian soils, constitutional review is more independent of authoritarian intervention and control. For instance, R&R Work Report 2021 discloses four cases where local regulations violated the PRC Constitution and the Civil Code for imposing restrictions on people's right to privacy, right to marriage, freedom of occupation and self-governance of homeowners.¹²¹

Beyond the private law system, the positive effects of constitutional review on human rights protection and the rule of law even permeate the policing and criminal justice systems that are conventionally perceived as arbitrary and highly

¹¹⁷ Liang Ying's interview with Nanfang Zhoumo. <http://www.infzm.com/wap/#/content/244563>, LAST VISITED ON MAY 16, 2024.

¹¹⁸ Xiaodan Zhang, for instance, speculated that given the centralization of power and control to an almost unprecedented extent in Xi's era and the strong ideological orientation and party leadership reality, it is impossible to bring any institutional breakthrough to Chinese constitutional situation. Zhang (2017, p. 397).

¹¹⁹ Kornai (1992, p. 39).

¹²⁰ Fu (2019).

¹²¹ R&R Work Report (2021, pp. 246-247).

politicalized.¹²² For example, as discussed above, the SPP repealed the conditional arrest upon the LAC's opinion. In another instance, the LAC opined that two local rules concerning the crimes of "picking quarrels and provoking trouble"¹²³ and assaulting police officers¹²⁴ violated the Criminal Law and the Law on Legislation on the grounds that they expand the applicable situations of the two crimes. These crimes have long been criticized for wide application against dissidents, media workers, lawyers and NGO activists.¹²⁵ These cases and changes are encouraging.

These dual dynamics prompt a question of what category of constitutional review cases will be considered "safe" from the Party's influence and decided on legal grounds. Given the paramount leadership of the Party, it may seem plausible that no constitutional review case is potentially independent of the Party. However, such an assertion likely overstates the influence of the CCP on the day-to-day operation of constitutional review. The decided cases have reflected distinct roles of the CCP's policies in constitutional review. They can be divided into three categories. First are cases in which no explicit Party policy is implicated; these cases tend to be resolved according to constitutional and legal principles, as exemplified by the conditional arrest case. Second are cases where the Party policies are directly relevant—such as in matters of birth control, environmental protection, and market regulation—but laws are aligned with or designed to implement these policies; thus, decisions in these cases tend to be rendered according to the laws, with policy-consistency assumed. Third are cases where legal provisions appear to conflict with the Party policies; in such circumstances, the Party policies prevail and guide the outcome of constitutional review.

In summary, Chinese constitutional review is embedded in the Chinese authoritarian rule of law campaign as an essential component to advance the socialist rule of law with Chinese characteristics. It has featured loyalty to the Party's leadership and, at the same time, commitment to protecting individual rights and safeguarding the authority of the constitution and law.

6 Conclusion

Chinese citizens, lawyers, and scholars have long awaited constitutional review—and many have devoted their full efforts toward this goal.¹²⁶ The advancement of constitutional review in 2018 represents a significant breakthrough in China's

¹²² Fu (2019).

¹²³ The local judiciary issued rules to expand the scope of application of the crime of picking quarrels and provoking trouble, and the National People's Congress stepped in to correct the mistake (Difang Sifa Jiguan Fawen Kuoda Xunxin Zishizui Shiyong Fanwei, Quanguo Renda Chushou Jiucuo)' South Metropolitan News (Nanfang Dushi Bao) 25 October 2024. <https://m.mp.oeeee.com/oe/BAAFRD0000202410251014448.html> last visited on May 14, 2025.

¹²⁴ R&R Work Report (2022, p. 154).

¹²⁵ Chen and Ma (2016).

¹²⁶ Charter 08 is a manifesto calling for liberal democracy in China. Many of its signers, including Xiaobo Liu and other democratic activists, were prosecuted by the government. Among its key demands, the Charter claimed, "We need to establish a constitutional supreme court and institute procedures for constitutional review."

constitutional development. Constitutional review, especially through the unique R&R procedure, has become increasingly active and consequential, illuminated by a discernible surge in caseloads and declarations of unconstitutionality and unlawfulness.

Embedded in China's political and legal context and as an essential component of China's rule of law construction, constitutional review has been shaped in keeping with the socialist rule of law with Chinese characteristics, which features duality: safeguarding people's rights and the authority of constitution and law while upholding the CCP's leadership. Certain constitutional review decisions have contributed meaningfully to the rule of law, the protection of individual rights and the enhancement of government accountability. This is one of the dual dynamics of Chinese constitutional review—a cheerful and encouraging one. The second dynamic—a commitment to the rule by the CCP—reflects the political compromise when constitutional review is embedded in China's authoritarian political and legal context. The NPCSC and its working bodies took various means of coupling constitutional review with the CCP's policies and orders. Where the Party's policies and commands contradict the rule of law, the former prevails at the cost of the latter.

These two dynamics are intertwined at this early stage of the development of Chinese constitutional review. Although the roles of laws and Party policies in constitutional review are expected to be delineated more clearly, the duality will likely continue to be a defining feature of Chinese constitutional review for the foreseeable future. The dual dynamics will serve as a framework for critically evaluating the operation and evolution of the Chinese constitutional review.

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Declarations

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